

[SEAL]

(Name of court)

Form 8.0.1: Automatic Order

at

Court office address

Applicant(s)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Respondent(s)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Date of order

Upon the filing or issuance of an Application, Answer, Motion to Change or Response to Motion to Change today and subject to further order of this Court,

THIS COURT ORDERS THAT:

1. This order must be served on the other party, other than a person or agency referred to in subsection 33(3) of the *Family Law Act*. After service of the Application, Answer, Motion to Change or Response to Motion to Change in accordance with the *Family Law Rules*, all documents in this case may be served by regular service, which includes email unless special service is required by the *Family Law Rules*.
2. Each party who has email access shall include an up to date email address on all documents that are filed with the court.
3. Each party must attend a Mandatory Information Program ("MIP") session, if they have not already attended one, within 45 days of the date of this order, subject to any exception in Rule 8.1 of the *Family Law Rules*.
4. If an Application, Answer, Motion to Change or Response to Motion to Change contains a claim for child and/or spousal support, a property claim, or a claim for exclusive possession of the matrimonial home and its contents, the party responding to the support claim must serve and file a Financial Statement, subject to any exception in Rule 13 of the *Family Law Rules*. The Financial Statement must be served and filed with the Court 30 days after receiving the document with the claim for support if the responding person lives in Canada or the United States or 60 days if the person lives elsewhere, unless the parties agree to an extension in writing.

5. Where a claim for support has been made, the party responding to the support claim must also serve the other party with the following documents along with the Financial Statement referred to at paragraph 4 of this order:
- a. a copy of every personal income tax return filed by the party, including any materials that were filed with the return, for each of the three most recent years;
 - b. a copy of every notice of assessment and reassessment issued to the party for each of the three most recent years;
 - c. where the party is an employee, confirmation of the total earnings paid in the year to date, including overtime, or, where such a statement is not provided by the employer, a letter from the party's employer setting out that information including the party's annual salary or compensation;
 - d. where the party is self-employed, for the three most recent years,
 - i. the financial statements of the party's business or professional practice, other than a partnership, and
 - ii. a statement showing a breakdown of all salaries, wages, management fees or other payments or benefits paid to, or on behalf of, persons or corporations with whom the parent or spouse does not deal at arm's length;
 - e. where the parent or spouse receives income from employment insurance, social assistance, a pension, workers compensation, disability payments or any other source (including the Canada Emergency Relief and other similar benefits), the most recent statement(s) that shows the total amount of income received during the current year or, if such a statement is not provided, a letter from the appropriate authority providing this information;
 - f. where the party is a partner in a partnership, confirmation of their income and draw from, and capital in, the partnership for its three most recent years;
 - g. where the party controls a corporation, for its three most recent years,
 - i. the financial statements of the corporation and its subsidiaries, and
 - ii. a statement showing a breakdown of all salaries, wages, management fees or other payments or benefits paid to, or on behalf of, persons or corporations with whom the corporation, and every related corporation, does not deal at arm's length; and
 - h. where the party is a beneficiary under a trust, a copy of the trust settlement agreement and copies of the trust's three most recent financial statements.
6. A party who is required to serve documents under Rule 13 of the *Family Law Rules* must confirm the financial documents that have been served on the other party by:
- a. serving a Certificate of Financial Disclosure (Form 13A) along with the Financial Statement and financial documents on the other party; and
 - b. filing the Certificate of Financial Disclosure with the court no later than,
 - i. six days before a case conference, in the case of the applicant or the party making the motion, as the case may be, and,
 - ii. four days before the case conference, in the case of the other party.

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7. If the party requesting support has not already served the other party with the financial documents in paragraph 5 of this order at the time of the claim as required by rules 13(1) and 13(3.2) and they are seeking:
- a. child support beyond just the table amount under the *Child Support Guidelines* or
 - b. spousal support,
- they must serve the financial documents in paragraph 5 of this order on the other party promptly unless the Court orders otherwise.
8. In the event of an inconsistency or conflict between this order and any other statute or regulation, the statute or regulation prevails.
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Date of signature

Signature of clerk of the court